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Case Number: 24CHCV02023 Hearing Date: September 15, 2026 Dept: F49

Dept. F49

Date: 9/15/26

Case Name: Edward Hurtado; Sreela Ajithkumar; Sidra

Baig vs. Edwin Cardova; Water Damage Rescue, Inc.; and Does 1-50

Case No. 24CHCV02023

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 15, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO FORM INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV02023

Motion filed: 4/8/26

MOVING PARTY: Defendants Edwin Cardova and Water

Damage Rescue, Inc.

RESPONDING PARTY: Plaintiff Sreela Ajithkumar

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff Sreela Ajithkumar to serve further verified responses to Defendants' Form Interrogatories, Set One, Nos. 10.1 and 12.1; and issuing evidentiary sanctions precluding Plaintiff from introducing evidence concerning the subject matters addressed in the interrogatories.

TENTATIVE RULING: The motion is GRANTED IN PART. Defendants' request for sanctions is DENIED. Plaintiff's request for sanctions is DENIED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiffs Edward Hurtado ("Hurtado"), Sreela Ajithkumar ("Ajithkumar"), and Sidra Baig ("Baig") (collectively, "Plaintiffs") in a motor vehicle collision that occurred on May 31, 2022. On May 31, 2024, Plaintiffs filed the Complaint against Defendants Edwin Cardova, Water Damage Rescue, Inc. (collectively, "Defendants"), and Does 1 through 50, alleging motor vehicle negligence.

On July 30, 2024, Defendants filed their joint Answer to the Complaint.

On April 8, 2026, Defendants filed the instant Motion to compel Ajithkumar to further respond to their Form Interrogatories, Set One (the "Motion").

On August 31, 2026, Ajithkumar filed an Opposition.

On September 8, 2026, Defendants filed a Reply.

ANALYSIS

"On receipt of a response to interrogatories, the

propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to interrogatories within 45 days after the responding party serves verified responses or any supplemental verified responses. (Code Civ. Proc., § 2030.300, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.)

Although not “‘jurisdictional’ in the fundamental sense, [the time limit] is ... ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Defendants’ counsel attests that

Ajithkumar served verified responses to Defendants’ Form Interrogatories, Set One on February 20, 2026 via email. (Carroll Decl., ¶¶ 5, 16.) The deadline to file a motion to compel further responses to the interrogatories was April 8, 2026. (Code Civ. Proc., §§ 1010.6, 2030.300.) The Motion, filed on April 8, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration must “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Defendants' counsel attests to sending meet and confer correspondence to Plaintiff's counsel and following up via telephone and further written communication. (Carroll Decl., ¶¶ 7-11.) Plaintiff's counsel did not respond to the written communication, and during the phone call indicated that she had not reviewed the earlier meet and confer letter. (Ibid.) The parties thus never engaged on the merits to resolve the issues informally.

Nevertheless, given that Plaintiff's counsel would not grant an extension of time to bring the Motion and Defendants' counsel did make several attempts to reach out concerning resolution (Carroll Decl., ¶¶ 9, 13), the Court finds that Defendants' counsel's effort fulfills the purpose of the requirement.

(3)

Separate Statement

"Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (2) To compel further responses to interrogatories." (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must "provide[] all information necessary to understand ... all the responses ... that are at issue" and "be full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Id., Rule 3.1345, subd. (c).)

Defendants have complied with the separate statement requirement.

B.

Motion to Compel Further Responses to Form Interrogatories, Set One

A party to whom interrogatories are propounded must respond "in writing under oath separately to each interrogatory by" answering the substance of the interrogatory, exercising an option to produce writings, or objecting. (Code Civ. Proc., § 2030.210, subd. (a).) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party

permits.” (§ 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (§ 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (§ 2030.220, subd. (c).)

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (Williams v. Super. Ct. (2017) 3 Cal.5th 531, 550.) A litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Id., at p. 541, citing West Pico Furniture Co. v. Super. Ct. (1961) 56 Cal.2d 407, 422.)

Defendants seek further responses to their Form Interrogatories, Set One, Nos. 10.1 and 12.1. Defendants argue that Ajithkumar’s responses are evasive and incomplete because they do not respond to the interrogatories in a clear and straightforward manner. (Mot., at pp. 7-9.)

Plaintiff contends that the responses are complete and fully compliant with the Discovery Act, suggesting that Defendants filed the Motion for an improper purpose. (Opp’n, at p. 2.)

(1)

The Responses at Issue

(a)

Form Interrogatory No. 10.1

Form Interrogatory No. 10.1 asks: “At any time before the INCIDENT did you have complaints or injuries that involved some part of your body claimed to have been injured in the INCIDENT? If so, for each state: (1) a description of the complaint or injury; (b) the dates it began and ended; and (c) the name, ADDRESS, and telephone number of each HEALTH CARE PROVIDER whom you consulted or who examined or treated you.” (Separate

Statement ("SS"), at p. 2.)

Ajithkumar's response to Form

Interrogatory No. 10.1 is "No." (SS, at p. 2.)

Ajithkumar contends that this is a

complete and compliant response to the interrogatory, leaving nothing to explain or supplement. (Opp'n, at p. 4.) While the Court would generally agree that the answer constitutes an unequivocal denial that Ajithkumar had any prior complaints concerning the parts of her body she claims were injured in the accident, Defendants present evidence in Reply that Ajithkumar suffers from a preexisting dental condition that she would have known about when responding to the interrogatory. Specifically, an oral evaluation of Ajithkumar performed on July 28, 2022, shortly after the accident, concluded that she had "pre-existing severe periodontal disease with bone loss and loose/weakened teeth exacerbated due to current trauma." (Fersch Decl., Exh. B.) This would constitute an injury preexisting the accident and renders a negative response to the interrogatory incomplete and inaccurate.

The Court accordingly GRANTS the Motion
as to Form Interrogatory No. 10.1

(b)

Form Interrogatory No. 12.1

Form Interrogatory No. 12.1 asks: "State the name, ADDRESS, and telephone number of each individual: (a) who witnessed the INCIDENT or the events occurring immediately before or after the INCIDENT; (b) who made any statement at the scene of the INCIDENT; (c) who heard any statements made about the INCIDENT by any individual at the scene; and (d) who YOU OR ANYONE ACTING ON YOUR BEHALF claim has knowledge of the INCIDENT (except for expert witnesses covered by Code of Civil Procedure section 2034.)" (SS, at p. 3.)

Ajithkumar's response states: "(a-d)

Plaintiff Edward Hurtado, Plaintiff Sreela Ajithkumar, and Plaintiff Sidra Baig, who should be contacted through their Counsel of record; and Defendant who can be contacted through his counsel of record. Discovery and investigation are ongoing and Plaintiff reserves the right to amend and/or supplement this response should additional information become available." (SS, at p. 3.)

Ajithkumar contends that this is a complete response which provides the names of all witnesses presently known to have witnessed the accident, made or heard statements concerning the accident, or otherwise possess knowledge of the accident, and provides the appropriate means of contacting them, which is through counsel. (Opp'n, at p. 5.)

In Reply, Defendants assert that the response is incomplete because it provides no addresses or telephone numbers and Ajithkumar's deposition testimony revealed other percipient witnesses—the drivers of three other vehicles involved in the accident—who were not disclosed. (Mot., at p. 8; Reply, at p.4.)

Upon review of the deposition testimony provided, Ajithkumar testifies to a lack of knowledge concerning the other vehicles. She testifies that she did not speak with anyone other than Baig at the scene of the accident, does not know the names of anyone else involved in the accident or who witnessed the accident, and was driven home straight from the scene of the accident. (Fersch Decl., Exh. A.)

As Defendants note, the Discovery Act only requires a responding party to answer an interrogatory to the extent possible based on reasonably available information. Given that Ajithkumar spoke only to Baig at the scene of the incident, it is entirely reasonable that she does not know the names and contact information of any percipient witnesses beyond the parties listed in her response, and Defendants present no evidence showing that Ajithkumar did not respond to the extent that she reasonably could.

As to the addresses of the parties, the Court notes that the Rules of Professional Conduct prohibit a lawyer from directly contacting a person known to be represented by counsel about the matter that is the subject of the representation. (Prof. Conduct Rule 4.2(a).) Plaintiffs are all represented by counsel. The purpose of providing contact information in response to Form Interrogatory No. 12.1 is therefore satisfied by directing Defendants to contact them through their counsel of record.

The Motion is DENIED as to Form Interrogatory No. 12.1.

C.

Sanctions

“The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

The court may also impose evidentiary sanctions against a party engaging in misuse of the discovery process by prohibiting that party from introducing matters into evidence. (Code Civ. Proc., § 2023.030, subd. (c).)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Defendants request evidence sanctions against Ajithkumar precluding her from introducing “evidence concerning the subject matters addressed in Form Interrogatory Nos. 10.1 and 12.1 unless and until Plaintiff provides code-compliant responses.” The Court finds evidentiary sanctions to be unwarranted under the circumstances.

Ajithkumar requests monetary sanctions against Defendants and their counsel of record in the amount of \$1,500.00. Given that the Court has partially granted the Motion, the Court finds that Ajithkumar is not entitled to sanctions under section 2030.300 and that Defendants have not misused the discovery process.

Both requests for sanctions are therefore DENIED.

CONCLUSION

Defendants’ motion to compel Plaintiff Sreela Ajithkumar to

further respond to their Form Interrogatories, Set One is GRANTED IN PART.
Ajithkumar is ordered to serve further verified response to Defendants' Form Interrogatories, Set One, No. 10.1 within 20 days.

Defendants'
request for evidence sanctions is DENIED.

Plaintiff's
request for monetary sanctions is DENIED.

Moving party to give notice.